

Court No. - 2

Case :- WRIT - C No. - 22367 of 2016

Petitioner :- Shakambhari Peetham

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Onkar Nath Tripathi, Acharya
Rajesh Tripathi

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Pankaj Mithal, J.

Learned counsel for the petitioner prays for and is allowed a week's time for filing supplementary affidavit.

Put up on 23.05.2016.

Order Date :- 16.5.2016

Piyush

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Onkar Nath Tripathi, Acharya
Rajesh Tripathi

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Pankaj Mithal, J.

Heard learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel appearing for respondent No.4.

The writ petition has been filed against the order of the Consumer Grievances Redressal Forum, Meerut dated 12.1.2016 and the appellate order thereto dated 17.3.2016 passed by the Electric Ombudsman dismissing the appeal of the petitioner.

The facts reveal that in 2003 an electric connection in the name of respondent No.5 was sanctioned. After a long gap of time this connection was transferred in the name of the petitioner. The respondent No.5 made a complaint that he is Pujari of the Shakambhari Peeth and since the electric connection was in his name it could not have been transferred in the name of the petitioner without his consent. The complaint has been considered and allowed by the impugned order.

In view of paragraph 4.44 of the U.P. Electricity Supply Code, 2005 an electricity connection once sanctioned can only be transferred in two contingencies; (1) where owner of the electricity connection is dead; and (2) where he gives consent for transfer of the same in another name.

The authorities below have found that the respondent No.5 is very much alive and the document on the basis of which his consent is shown is not a genuine document rather a fake one. Therefore, the transfer of the connection in the name of the petitioner is in contravention of paragraph 4.44 of the U.P. Electricity Supply Code, 2005.

The aforesaid is a finding of fact concurrently recorded by the authorities below.

In view of the aforesaid facts and circumstances, it appears that by raising the dispute of electricity connection the parties are trying to establish their title over the disputed premises. The

title or right over the disputed premises are subject matter of a civil suit, namely, Suit No.775 of 1996.

In view of the above, the writ petition has no merit and is dismissed.

The finding or observations made by any of the authorities below in this case would not come in the way in adjudication of the dispute which is pending before the civil court.

Order Date :- 23.5.2016

Brijesh